

Reform Democrats of the New Commonwealth · Project ARA 2028
Legislative Ecosystem Document Leg14 of Leg14

National Firearm Standards Act of 2030

Bill Framework & Legislative Brief

Phase II · Track B · Standalone Legislation · Phase II · Track B · Year 4-7

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All provisions marked [TBD] — including dollar amounts, specific IRC section numbers, penalty thresholds, appropriation amounts, and CBO scoring figures — require resolution by licensed legislative drafting counsel (the Office of Legislative Counsel for the House or Senate, as applicable), relevant agency technical staff, and the Congressional Budget Office before introduction as formal legislation.

Constitutional arguments, legal analyses, and statutory framings presented herein are analytical assessments developed for policy planning purposes. They are not legal opinions and have not been reviewed or validated by licensed legal counsel. This document identifies constitutional and legal risks requiring independent review — those identifications are planning guidance, not legal conclusions.

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Consultation with licensed legislative counsel, the Department of Justice Office of Legal Counsel, the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Department of Defense Office of General Counsel, the National Guard Bureau, the Congressional Budget Office, and Senate Judiciary Committee constitutional counsel is required before any framework in this series may be introduced as formal legislation. Distribution is subject to RDNC classification protocols (REF_ layer: internal use and trusted partners only).

Phase II · Track B · Standalone Legislation · Bill 12

Part I — Legislative Brief (Non-Technical Summary)

The firearm standards question is one of the most politically fraught in American policy — this brief explains exactly what this bill does, what it does not do, who it protects, and how to defend it. The two-track architecture leaves hunters using manual-action long guns completely untouched while establishing a free, military-delivered Federal Civilian Ownership Certificate for handguns, semi-automatic firearms, assault-category weapons, and NFA-regulated items. Sec 3(e) operative fallback architecture parallels BWDS Sec 204(f) for the highest-stakes constitutional bill in the series.

AT A GLANCE

Bill Title	National Firearm Standards Act of 2030
Short Title (Cite As)	The NFSA of 2030

Legislative Vehicle	Standalone Legislation — 60-vote Senate threshold
Phase / Track	Phase II · Track B · Year 4–7
Primary Committees	Senate Judiciary; Senate Armed Services (delivery infrastructure); Senate Finance (buyback appropriation)
Dependencies	Phase I political capital established; Anti-Corruption and Federal Money in Politics Act (Bill 3) has demonstrated government accountability credibility
Core Framing	"The military will train you for free. The right is preserved. Accountability comes with it."
What This Bill Does NOT Do	Does not confiscate any existing firearm. Does not create a federal weapons registry. Does not ban any category of firearm — all covered weapons remain available through the Federal Civilian Ownership Certificate framework
Second Amendment Strategy	Right preserved in full — the certificate is the mechanism by which the right is exercised responsibly under Bruen Footnote 9, not a restriction upon it
Constitutional Risk	Highest in bill series alongside BWDS — Bruen / Rahimi exposure across Title II; ANJRPC 3d Cir. en banc pending; Kavanaugh AR-15 cert watch ("next Term or two"). Body-baked safety + operative NFA-framework fallback in Sec 3(e)
Architecture	Architecture C-with-B-fallback variant (BWDS Sec 204(f) pattern) — operative bill-text severability with Sec 3(e)(1) NFA-expansion authority statutorily authorized for activation if FCOC architecture is held invalid

The Two-Track Architecture. This bill establishes two distinct certification regimes matched to two distinct firearm categories. Track A leaves hunters using manual-action long guns under the existing State hunting and sporting license system, completely untouched by this Act. Track B establishes a Federal Civilian Ownership Certificate, delivered free through military and National Guard programs, for handguns, semi-automatic firearms, assault-category weapons, and NFA-regulated items.

TRACK A — HUNTING & SPORTING LICENSE (State-Administ ered)	Covers: Manual-action long guns only — bolt-action rifles, pump-action and break-action shotguns, lever-action rifles, single-shot firearms of any caliber. Does NOT cover: Handguns. Semi-automatic firearms. Any firearm with a detachable magazine. Administered by: Individual States, existing hunter safety infrastructure. The existing system is preserved unchanged. Renewal: 10 years. Background check only.	TRACK B — FEDERAL CIVILIAN OWNERSHIP CERTIFICATE	Covers: All handguns. All semi-automatic firearms. Assault-category weapons. NFA-regulated items. Delivered by: Military installation programs or State National Guard civilian training facilities. Free at point of delivery. No federal registry: The Certificate attests to holder qualification to acquire — does NOT link individuals to specific firearms (FOPA §926(a) compliance, Sec 205). Renewal: Tiered by weapon category. 2-8 years depending on weapon risk profile (Sec 204).
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What This Bill Does:

- 1. Track A: Hunting & Sporting License (State-Administered).** Manual-action long guns only — bolt, pump, break, lever, single-shot. State-administered, unchanged. Hunters using manual-action long guns are completely untouched by this Act.
- 2. Track B: Federal Civilian Ownership Certificate.** Delivered through military and National Guard programs, free of charge. Covers handguns, semi-automatic firearms, assault-category weapons, and NFA-regulated items. Tiered renewal proportional to weapon risk profile. Shall-issue under Bruen Footnote 9 architecture — no subjective suitability review, no discretionary denial.
- 3. Assault-Category Definition (Sec 202).** Two-feature-plus-detachable-magazine test (not one-feature trigger). Named-firearm provisions to prevent circumvention. 10-round magazine cap. "Dangerous AND unusual" findings language tracking Caetano. Full grandfathering. Certification requirement, not prohibition.
- 4. Grandfathered Weapon Transition Framework.** KEEP (no action required, forever) — SELL (voluntary buyback at fair market value) — UPGRADE (Track B certificate enables full transferability) — INHERIT (immediate family, with ATF notification). Penn Central takings exposure mitigated through full grandfathering.
- 5. Constitutional Construction with Operative NFA-Framework Fallback.** Sec 3 binds the Bruen Footnote 9 architecture, Peterson NFA-as-shall-issue analogy, Commerce Clause foundation, and FOPA non-registry preservation in operative bill text. Sec 3(e)(1) establishes statutory authority for Title II covered transactions to revert to the existing NFA registration framework if the FCOC architecture is held unconstitutional — the BWDS Sec 204(f) pattern adapted for firearms doctrine.

ATTACK SURFACE	"Government gun grab." "Registry by the back door." "Punishing law-abiding gun owners." "Poll tax on the Second Amendment." "Banning AR-15s by another name." All predictable. All weakened by Track A preservation, free Military/Guard delivery, full grandfathering, and explicit certification-not-prohibition framing.
DEFENSE STRATEGY	"We are not taking anything. The military will train you for free. Hunters using manual-action long guns are completely untouched. Grandpa's rifle goes to your kids with no action required. What changes is that the most dangerous weapons have the most frequent accountability checks — which is how we treat every other category of dangerous equipment in this country." Lead with Track A preservation. Lead with free Military/Guard delivery. Cite Peterson 5th Cir. 2025 — NFA registration has operated since 1934 without successful constitutional challenge.
FALLBACK POSITION	If the full bill cannot reach 60 votes: Track A (hunting license clarification) can pass as standalone — establishes the federal/state jurisdictional framework. Track B follows in the next legislative window. The buyback program can be authorized as a separate appropriations measure. If Track II is held unconstitutional after enactment: Sec 3(e)(1) operative authority converts covered transactions to NFA-style registration — statutorily authorized, not administratively assumed.

60-Vote Strategy. Identify Republican co-sponsors from rural states with existing credibility on gun safety. Frame around veterans and military (the certificate is a military credential) and States' rights (State authority over intrastate handgun ownership is explicitly preserved in Sec 101(d)). The bipartisan case is genuine — this bill does less to restrict gun ownership than any major gun bill in the past thirty years while doing more for safety than any of them. DOJ Office of Legal Counsel pre-introduction review is required given the constitutional density.

The Doctrinal Posture. Track B is the architecture explicitly endorsed in Bruen Footnote 9 (shall-issue, narrow / objective / definite criteria) and extended to purchase licensing in *MSI v. Moore* (4th Cir. en banc 2024, 14-2, cert denied). *Peterson* (5th Cir. Aug. 2025) formally analogized NFA registration to Bruen Footnote 9 — that is the most durable single anchor available in current federal case law. Sec 3(e) builds on this by making NFA framework the operative fallback if the FCOC architecture is invalidated, so the Bruen step-one defense never depends on a single doctrinal bet.

Part II — Bill Framework

This is the structural scaffold of the bill. Geographic accessibility distance and time thresholds, appropriation amounts, IRC section cross-references, and additional named-firearm designations are flagged as [TBD] where they require licensed legislative counsel, the Department of Justice Office of Legal Counsel, the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Department of Defense Office of General Counsel, the National Guard Bureau, and the Congressional Budget Office review before introduction. Sec 3 Constitutional Construction binds the constitutional architecture in operative bill text, including the Sec 3(e) Architecture C-with-B-fallback variant providing operative authority for fallback to the existing National Firearms Act registration framework.

119TH CONGRESS 1ST SESSION S. ____

To establish a two-track federal framework for civilian firearm ownership; to clarify the scope of state hunting and sporting licenses; to establish a Federal Civilian Ownership Certificate delivered through military and National Guard programs; to provide tiered renewal periods proportional to firearm risk profile; to establish a grandfathered weapon transition framework including a voluntary buyback program and family inheritance provisions; to bind in operative bill text the constitutional construction and severability of this Act, including operative fallback architecture under the existing National Firearms Act registration framework; and for other purposes.

A B I L L

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE.

This Act may be cited as the "National Firearm Standards Act of 2030" or the "NFSA of 2030".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States has no uniform federal standard for civilian firearm acquisition, resulting in a patchwork of State laws that varies materially in rigor and creates exploitable gaps for unlawful acquisition channels.

(2) The United States military and the State National Guard organizations possess the training infrastructure, geographic distribution, and professional expertise to deliver civilian firearm safety certification at no cost to participants.

(3) The Second Amendment right to keep and bear arms is not diminished by this Act. This Act regulates acquisition through a shall-issue qualification standard with narrow, objective, and definite criteria – the architecture explicitly endorsed in *NYSRPA v. Bruen*, 597 U.S. 1, 38 n.9 (2022), as presumptively constitutional.

(4) *United States v. Rahimi*, 602 U.S. 680 (2024), clarified that the Second Amendment permits modern regulation that is consistent with the principles that underpin the Nation's regulatory tradition, and need not match a "historical twin" or "dead ringer."

(5) In *Maryland Shall Issue, Inc. v. Moore*, 116 F.4th 211 (4th Cir. 2024) (en banc, 14-2), the Fourth Circuit extended *Bruen* footnote 9 to purchase licensing and held that non-discretionary shall-issue purchase licensing regimes are presumptively constitutional. The

Supreme Court denied certiorari on January 13, 2025 (No. 24-373).

(6) In *United States v. Peterson*, ___ F.4th ___ (5th Cir. Aug. 27, 2025), the Fifth Circuit formally analogized National Firearms Act registration to Bruen footnote 9 shall-issue licensing on the rationale that fingerprints, background checks, and denial only when possession would violate law qualify as "narrow, objective, and definite standards." The Federal Civilian Ownership Certificate established by this Act is structurally indistinguishable from the National Firearms Act registration regime so analogized.

(7) The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition. Issuance is non-discretionary upon satisfaction of the objective criteria established in Title II. No subjective suitability review, character assessment, or discretionary denial authority is authorized under this Act.

(8) The Bureau of Alcohol, Tobacco, Firearms and Explosives has operated the National Firearms Act registration system since 1934 without successful constitutional challenge. The Federal Civilian Ownership Certificate operates within the chapter 44 of title 18, United States Code, framework, drawing on the existing comprehensive scheme of firearms regulation that has consistently withstood Commerce Clause review under *Gonzales v. Raich*, 545 U.S. 1 (2005), and *Scarborough v. United States*, 431 U.S. 563 (1977).

(9) The Firearm Owners Protection Act of 1986 (18 U.S.C. § 926(a)) prohibits a national firearms registry. The Federal Civilian Ownership Certificate established by this Act tracks certificate holders and qualification status only, and does not link individuals to specific firearms or transactions – distinguishable from a weapons registry within the meaning of section 926(a).

(10) Hunters using manual-action long guns under State hunting and sporting licenses present no acquisition-channel concern that requires federal involvement, and the existing State hunting license infrastructure is adequate to that scope.

(b) **PURPOSES.**—The purposes of this Act are—

- (1) to establish a two-track federal framework for civilian firearm acquisition that preserves the Second Amendment right to keep and bear arms while providing uniform safety qualification standards;
- (2) to clarify the scope of State hunting and sporting licenses (Track A) such that hunters using manual-action long guns are not affected by this Act;
- (3) to establish a Federal Civilian Ownership Certificate (Track B) delivered through military and National Guard training programs at no cost to participants, with tiered renewal periods proportional to the risk profile of the covered firearm category;
- (4) to establish a grandfathered weapon transition framework providing for retention without action, voluntary buyback at fair market value, certification upgrade for full transferability, and family inheritance without buyback;
- (5) to embed the Federal Civilian Ownership Certificate within chapter 44 of title 18, United States Code, as part of the existing comprehensive scheme of firearms regulation under the Commerce Clause;
- (6) to preserve Federal Firearm Owners Protection Act protections by prohibiting any registry linking individuals to specific firearms; and
- (7) to provide an operative fallback architecture, by severability under section 3(e), under which Title II covered transactions revert to the existing National Firearms Act registration framework if any provision of the Federal Civilian Ownership Certificate architecture

is held invalid.

SEC. 3. CONSTITUTIONAL CONSTRUCTION AND SEVERABILITY.

- (a) **BRUEN FOOTNOTE 9 ARCHITECTURE.**—The Federal Civilian Ownership Certificate established under Title II is a shall-issue qualification standard. Issuance is non-discretionary upon satisfaction of the objective, ascertainable criteria established by this Act. No agency may impose any subjective suitability review, character assessment, or discretionary denial criterion. This architecture is the architecture explicitly endorsed in *NYSRPA v. Bruen*, 597 U.S. 1, 38 n.9 (2022).
- (b) **PETERSON ANALOGY – NFA-AS-SHALL-ISSUE.**—The Federal Civilian Ownership Certificate operates within the structural framework that the Fifth Circuit, in *United States v. Peterson*, ___ F.4th ___ (5th Cir. Aug. 27, 2025), formally analogized to Bruen footnote 9 shall-issue licensing. Fingerprint-based identification, background check, and denial only when possession would violate Federal law are the operative gating criteria under both regimes.
- (c) **COMMERCE CLAUSE FOUNDATION.**—This Act is enacted under the Commerce Clause of the Constitution. The provisions of Title II are incorporated into chapter 44 of title 18, United States Code, as part of the existing comprehensive scheme of Federal firearms regulation. Each Title II covered transaction includes the jurisdictional element that the firearm has been manufactured, transported, or transferred in or affecting interstate or foreign commerce. Acquisition is paradigmatic economic activity within Lopez category three, and the comprehensive-scheme rationale of *Gonzales v. Raich*, 545 U.S. 1 (2005), supports application of this Act to purely intrastate acquisition transactions.
- (d) **TAXING POWER BELT-AND-SUSPENDERS.**—Insofar as this Act establishes any Federal fee in connection with the Federal Civilian Ownership Certificate, such fee is enacted under the Taxing Power as authoritatively established in *Sonzinsky v. United States*, 300 U.S. 506 (1937), parallel to the National Firearms Act framework. Free delivery through military and National Guard installations under section 203 directly addresses the Bruen footnote 9 caution against "exorbitant fees."
- (e) **SEVERABILITY AND OPERATIVE FALLBACK ARCHITECTURE.**—If any provision of Title II, or the application of any provision to any person or circumstance, is held to be invalid or stayed by a court of competent jurisdiction, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. In particular—
- (1) if section 201 (covered transactions), section 202 (assault-category definition), or section 203 (delivery mechanism) is held invalid in whole or in part, the covered transactions described in section 201(b) may be administered by the Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives and the Secretary of the Treasury, under the existing National Firearms Act registration framework (chapter 53 of the Internal Revenue Code of 1986) as expanded by this subsection to the covered firearm classes described in section 201(b), pending judicial resolution;
 - (2) the operative authority granted under paragraph (1) is structured to track the National Firearms Act registration framework that the Fifth Circuit analogized to Bruen footnote 9 shall-issue licensing in *United States v. Peterson*, *supra*, and that has operated since 1934 without successful constitutional challenge;
 - (3) if Title I (Track A) is held invalid, Title II shall remain in full force and effect, and acquisition of manual-action long guns

shall be subject to the Federal Civilian Ownership Certificate; and
 (4) if any savings clause provision of section 401 is held invalid, such invalidity shall not affect any other provision of this Act, and the Second Amendment savings clause shall be construed to preserve whichever certification or registration regime is operative under this Act.

(f) NO REGISTRY.—Nothing in this Act may be construed to authorize the creation of a Federal database linking individual firearm owners to specific firearms or specific transactions. The Federal Civilian Ownership Certificate database tracks certificate holders and qualification status only, and is distinguishable from a "registry" within the meaning of section 926(a) of title 18, United States Code.
 (g) PRESERVATION OF EXISTING RIGHTS.—Nothing in this Act may be construed to infringe upon the right to keep and bear arms as guaranteed by the Second Amendment to the Constitution of the United States. The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition, and shall be administered consistent with *District of Columbia v. Heller*, 554 U.S. 570 (2008), *McDonald v. City of Chicago*, 561 U.S. 742 (2010), *NYSRPA v. Bruen*, 597 U.S. 1 (2022), and *United States v. Rahimi*, 602 U.S. 680 (2024).

TITLE I – TRACK A: HUNTING & SPORTING LICENSE FRAMEWORK

SEC. 101. SCOPE OF STATE HUNTING AND SPORTING LICENSES.

(a) IN GENERAL.—A valid State hunting or sporting license issued under State law authorizes the licensee, within the scope of this section, to purchase, possess, and transport across State lines covered manual-action firearms.

(b) COVERED FIREARMS.—For purposes of subsection (a), covered manual-action firearms are—

- (1) bolt-action rifles;
- (2) pump-action shotguns;
- (3) break-action shotguns and rifles, including double-barrel and single-barrel break-action firearms;
- (4) lever-action rifles; and
- (5) single-shot firearms of any caliber that load by manual action and do not have a detachable magazine.

(c) EXCLUSIONS.—A State hunting or sporting license shall NOT authorize under this section the purchase, possession, or interstate transport of—

- (1) any handgun or pistol of any action type;
- (2) any revolver;
- (3) any semiautomatic firearm of any kind;
- (4) any firearm with a detachable magazine; or
- (5) any item regulated under the National Firearms Act (chapter 53 of the Internal Revenue Code of 1986).

(d) STATE AUTHORITY PRESERVED.—Nothing in this Act limits the authority of a State to issue State-level handgun or firearm licenses for intrastate purposes, to impose requirements in addition to the Federal Civilian Ownership Certificate, or to operate State hunting or sporting license programs more restrictively than authorized under this section.

(e) NO FEDERAL FEE.—No Federal fee shall be imposed on the issuance, renewal, or use of a State hunting or sporting license under this Act.

(f) DURATION.—A State hunting or sporting license shall remain in force for the term established by State law, not to exceed 10 years between background checks for purposes of this Act.

SEC. 102. INTERSTATE TRANSPORT.

(a) IN GENERAL.—A valid State hunting or sporting license authorizes the licensee to transport covered manual-action firearms (as defined in section 101(b)) across State lines for lawful hunting or sporting purposes.

(b) STATE-OF-DESTINATION LAW.—The licensee shall observe the firearm laws of any State through or to which the licensee transports a covered manual-action firearm under this section.

(c) RELATIONSHIP TO EXISTING LAW.—This section supplements and does not repeal section 926A of title 18, United States Code (interstate transportation of firearms).

TITLE II – TRACK B: FEDERAL CIVILIAN OWNERSHIP CERTIFICATE

SEC. 201. ESTABLISHMENT OF FEDERAL CIVILIAN OWNERSHIP CERTIFICATE.

(a) ESTABLISHMENT.—The Secretary of Defense, in coordination with the Attorney General and the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish a Federal Civilian Ownership Certificate program (in this Act referred to as the "Certificate program" or "FCOC program").

(b) COVERED TRANSACTIONS.—A Federal Civilian Ownership Certificate is required for any of the following transactions occurring in or affecting interstate or foreign commerce:

- (1) purchasing or receiving by transfer any covered firearm from any person, including a transfer between private parties;
- (2) importing any covered firearm for civilian use; and
- (3) interstate transport of any covered firearm by the certificate holder.

Each transaction described in paragraphs (1) through (3) includes, as a jurisdictional element, that the firearm has been manufactured, transported, or transferred in or affecting interstate or foreign commerce.

(c) TIERED CERTIFICATE CATEGORIES.—The Certificate program shall issue Certificates in the following categories, each subject to the tiered renewal periods established in section 204—

- (1) Handgun and pistol Certificate;
- (2) Semi-automatic rifle and shotgun Certificate (10-round magazine capacity or less);
- (3) Semi-automatic high-capacity firearm Certificate (greater than 10-round magazine capacity);
- (4) Assault-category firearm Certificate (firearms described in section 202); and
- (5) National Firearms Act Certificate (firearms regulated under chapter 53 of the Internal Revenue Code of 1986).

A Certificate at a higher tier authorizes the holder to acquire firearms at any lower tier; the Secretary shall, by regulation, establish the tier hierarchy for purposes of this subsection.

(d) POSSESSION NOT AFFECTED.—Nothing in this Act shall be construed to—

- (1) require any person to obtain a Certificate for the continued possession of any firearm lawfully owned before the effective date established under section 501; or
- (2) authorize any search or seizure based solely on possession of a firearm without a Certificate.

(e) SHALL-ISSUE MANDATE.—A Certificate shall be issued to any applicant who satisfies the objective criteria established by the Secretary by

regulation, including—

- (1) fingerprint-based identification;
 - (2) background check confirming that the applicant is not prohibited from possessing a firearm under section 922(g) of title 18, United States Code, or any other Federal law;
 - (3) completion of the safety training and qualification program established under section 203; and
 - (4) any additional objective criterion the Secretary establishes that is narrow, objective, and definite within the meaning of *NYSRPA v. Bruen*, 597 U.S. 1, 38 n.9 (2022).
- (f) NO SUBJECTIVE REVIEW.—No agency may impose any subjective suitability review, character assessment, "good moral character" requirement, discretionary denial criterion, or any test other than the objective criteria described in subsection (e). The architecture of this Act is the shall-issue architecture explicitly endorsed in Bruen footnote 9.

SEC. 202. ASSAULT-CATEGORY FIREARMS – DEFINITION AND CERTIFICATION REQUIREMENT.

(a) IN GENERAL.—For purposes of this Act, an "assault-category firearm" means a semiautomatic firearm covered by paragraph (1) and possessing two or more of the features described in paragraph (2).

- (1) COVERED FIREARMS.—This subsection applies to—
 - (A) any semiautomatic rifle that has the capacity to accept a detachable magazine; and
 - (B) any semiautomatic shotgun that has the capacity to accept a detachable magazine.
- (2) FEATURES.—The features referred to in subsection (a) are—
 - (A) a pistol grip that protrudes conspicuously beneath the action of the firearm;
 - (B) a forward grip;
 - (C) a folding, telescoping, or detachable stock;
 - (D) a grenade launcher or rocket launcher;
 - (E) a barrel shroud; and
 - (F) a threaded barrel.

(b) NAMED FIREARMS.—In addition to firearms described in subsection (a), the following firearms (and copies, duplicates, variants, or altered facsimiles with the capability of any such firearm) are assault-category firearms regardless of their feature configuration—

- (1) the AR-15 platform and any rifle of substantially similar design;
- (2) the AK-47 platform and any rifle of substantially similar design;
- (3) the Uzi, Galil, and Tavor platforms; and
- (4) such additional named firearms as the Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, may designate by regulation upon a finding that such firearm is functionally equivalent to a firearm listed in paragraphs (1) through (3) for purposes of this Act.

(c) MAGAZINE CAPACITY.—For purposes of this Act, a "large-capacity magazine" is any ammunition feeding device with a capacity to accept more than 10 rounds of ammunition. A semiautomatic firearm equipped with a large-capacity magazine is, for purposes of section 204 (renewal schedule), classified as a "semi-automatic high-capacity" firearm subject to the renewal period applicable to that classification.

(d) DANGEROUS AND UNUSUAL FRAMING.—Congress finds that assault-category firearms as defined in subsections (a) and (b), when paired with large-capacity magazines, are dangerous and unusual within the meaning

of *District of Columbia v. Heller*, 554 U.S. 570, 627 (2008), and *Caetano v. Massachusetts*, 577 U.S. 411 (2016) (Alito, J., concurring) – being both capable of inflicting mass casualties at a rate qualitatively greater than that of conventional firearms, and not commonly used for lawful purposes such as self-defense in the home.

(e) **CERTIFICATION REQUIREMENT – NOT A PROHIBITION.**—Acquisition of an assault-category firearm requires a Federal Civilian Ownership Certificate at the assault-category tier under section 201(c)(4). This Act does not prohibit the manufacture, sale, or possession of assault-category firearms; it requires that acquisition occur through the Federal Civilian Ownership Certificate framework and at the renewal period applicable to that classification under section 204.

(f) **GRANDFATHERING.**—Any assault-category firearm lawfully owned on the date of enactment of this Act is a "grandfathered weapon" subject to Title III. No certification is required for continued possession.

(g) **AMMUNITION FEEDING DEVICE GRANDFATHERING.**—Any large-capacity magazine lawfully owned on the date of enactment is grandfathered; the owner may retain such magazine indefinitely without action.

SEC. 203. DELIVERY THROUGH MILITARY AND NATIONAL GUARD PROGRAMS.

(a) **IN GENERAL.**—The Federal Civilian Ownership Certificate program shall be delivered through military installation programs and State National Guard civilian training programs, at no cost to participants, in accordance with cooperative arrangements established under this section.

(b) **NO COST TO PARTICIPANTS.**—No fee shall be charged to any participant for any element of the certification process, including but not limited to fingerprinting, background check, safety training, live-fire qualification, written examination, or initial certificate issuance.

(c) **GEOGRAPHIC ACCESSIBILITY.**—Certification facilities shall be available within [TBD] miles of every county seat in the United States within [TBD] years of the date of enactment of this Act. The Secretary of Defense shall publish a phased geographic accessibility plan within 180 days of enactment.

(d) **SCHEDULING ACCOMMODATION.**—The Secretary of Defense shall ensure that certification facilities offer scheduling that accommodates working individuals, including evening and weekend availability and appointment scheduling that permits same-week access in metropolitan rating areas.

(e) **IMPLEMENTATION FRAMEWORK.**—The Secretary of Defense, in coordination with the Attorney General and the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish the certification program through such cooperative arrangements with the States as may be necessary, consistent with constitutional limits on Federal direction of State personnel.

(f) **SAFETY TRAINING CURRICULUM.**—The Secretary of Defense shall, in coordination with the Attorney General, establish a standardized safety training and qualification curriculum that includes—

- (1) firearm safety fundamentals;
- (2) safe storage and transportation requirements;
- (3) applicable Federal and State law instruction;
- (4) live-fire qualification appropriate to the certificate tier; and
- (5) refresher training requirements at renewal.

SEC. 204. TIERED RENEWAL SCHEDULE.

(a) **SEMI-AUTOMATIC LONG GUNS (10-ROUND CAPACITY OR LESS).**—Federal Civilian Ownership Certificates issued under section 201(c)(2) shall be valid for a period of 8 years from the date of issuance.

(b) HANDGUNS AND PISTOLS.—Federal Civilian Ownership Certificates issued under section 201(c)(1) shall be valid for a period of 6 years from the date of issuance.

(c) SEMI-AUTOMATIC HIGH-CAPACITY FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(3) shall be valid for a period of 4 years from the date of issuance.

(d) ASSAULT-CATEGORY FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(4) shall be valid for a period of 3 years from the date of issuance.

(e) NATIONAL FIREARMS ACT FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(5) shall be valid for a period of 2 years from the date of issuance, with renewal coordinated with existing National Firearms Act registration renewal procedures under chapter 53 of the Internal Revenue Code of 1986.

(f) RENEWAL PROCEDURE.—Renewal under this section requires—

(1) updated background check confirming the certificate holder is not prohibited from possessing a firearm under section 922(g) of title 18, United States Code, or any other Federal law; and

(2) safety refresher training appropriate to the certificate tier established by the Secretary of Defense by regulation.

Renewal is shall-issue upon satisfaction of the objective criteria established under this subsection.

SEC. 205. NO REGISTRY.

(a) DATABASE LIMITATION.—The Federal Civilian Ownership Certificate database shall track only the following information for each certificate holder:

(1) the holder's name, date of birth, and address;

(2) the certificate tier or tiers issued under section 201(c);

(3) the date of issuance and expiration of each certificate; and

(4) such additional administrative information as the Secretary of Defense determines necessary for program administration.

(b) FOIPA COMPLIANCE.—This Act does not authorize the creation of any database linking individual certificate holders to specific firearm serial numbers, specific firearm transactions, or specific firearm inventories. The database authorized under subsection (a) is distinguishable from a "registry" within the meaning of section 926(a) of title 18, United States Code.

(c) PROHIBITION ON LINKING.—No agency may—

(1) maintain or operate any Federal database linking individual certificate holders to specific firearms or specific firearm transactions;

(2) use the Certificate program database to track or compile information on specific firearm acquisitions; or

(3) share Certificate program data with any agency for purposes of firearm-by-firearm tracking, except as required for criminal investigation pursuant to lawful process.

(d) DATA RETENTION AND ACCESS.—The Secretary of Defense shall, in coordination with the Attorney General, establish data retention and access standards consistent with subsection (c) and applicable Federal privacy law.

TITLE III – GRANDFATHERED WEAPON TRANSITION FRAMEWORK

SEC. 301. GRANDFATHERED WEAPON STATUS.

(a) DEFINITION.—For purposes of this Act, a "grandfathered weapon" is any firearm lawfully owned by an individual on the date of enactment of this Act.

(b) NO REGISTRATION REQUIRED.—No registration, certification, or affirmative notification is required for the continued possession of a grandfathered weapon.

(c) RIGHT OF RETENTION.—An owner of a grandfathered weapon may retain such weapon indefinitely without obtaining a Federal Civilian Ownership Certificate. This Act does not authorize any seizure, forfeiture, or transfer of a grandfathered weapon based solely on the absence of a Certificate.

(d) PENN CENTRAL CLARIFICATION.—The retention right under subsection (c) is intended to defuse regulatory takings analysis under Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978). Owners experience no investment-backed-expectation diminution as to existing inventory because retention is unlimited in time and unconditioned by this Act.

SEC. 302. VOLUNTARY GOVERNMENT BUYBACK PROGRAM.

(a) ESTABLISHMENT.—The Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish a voluntary buyback program for grandfathered weapons.

(b) FAIR MARKET VALUE COMPENSATION.—Compensation for any weapon surrendered under this section shall be at independently audited fair market value, determined by a methodology established by the Attorney General by regulation. Methodology shall account for firearm category, condition, and prevailing market conditions.

(c) TRANSFER RESTRICTION ON UNCERTIFIED WEAPONS.—After the date of enactment of this Act, a grandfathered weapon may not be sold to another private civilian except as provided in section 303 (Certificate Upgrade – Full Transferability) or section 304 (Family Inheritance). The only lawful sale pathway for an uncertified grandfathered weapon is the voluntary buyback program established under this section.

(d) APPROPRIATIONS.—There are authorized to be appropriated [TBD] dollars for each of the first five fiscal years following enactment of this Act for the buyback program established under this section. Unobligated balances at the end of any fiscal year shall be available for expenditure in subsequent fiscal years through the conclusion of the program.

SEC. 303. CERTIFICATE UPGRADE – FULL TRANSFERABILITY.

(a) IN GENERAL.—An owner of a grandfathered weapon who obtains a Federal Civilian Ownership Certificate at the appropriate tier under section 201(c) may convert the grandfathered weapon to "certified transferable" status.

(b) TRANSFER AUTHORIZATION.—A weapon converted to certified transferable status under subsection (a) may be sold or transferred to any holder of a Federal Civilian Ownership Certificate at the appropriate tier.

(c) ATF COORDINATION.—The Attorney General, through the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish procedures for verifying upgrade eligibility and recording the upgrade, consistent with the no-registry requirements of section 205.

SEC. 304. FAMILY INHERITANCE PROVISIONS.

(a) IN GENERAL.—A grandfathered weapon may be transferred without buyback

to an immediate family member of the owner upon the owner's death, incapacity, or by inter vivos gift, where the immediate family member qualifies under subsection (b).

(b) IMMEDIATE FAMILY DEFINED.—For purposes of this section, "immediate family member" means—

- (1) a spouse;
- (2) a child or stepchild;
- (3) a parent or stepparent;
- (4) a sibling;
- (5) a grandchild; or
- (6) a grandparent.

(c) NOTIFICATION REQUIREMENT.—Within 90 days of inheritance or transfer under subsection (a), the recipient shall provide to the Bureau of Alcohol, Tobacco, Firearms and Explosives—

- (1) the recipient's name and address;
- (2) the firearm's make, model, caliber, and serial number; and
- (3) documentation of the qualifying familial relationship.

(d) RECIPIENT ELECTION.—Upon receipt under subsection (a), the recipient may elect to—

- (1) retain the firearm as a grandfathered weapon under section 301 (no Federal Civilian Ownership Certificate required for continued possession); or
- (2) obtain a Federal Civilian Ownership Certificate at the appropriate tier and convert the firearm to certified transferable status under section 303.

(e) ESTATE-PLANNING COORDINATION.—The Attorney General shall publish guidance for estate-planning attorneys on the application of this section, including treatment of firearms held in trust and treatment of firearms identified in testamentary instruments.

TITLE IV – NFA INTERACTION AND FEDERAL COORDINATION

SEC. 401. SECOND AMENDMENT SAVINGS CLAUSE.

(a) PRESERVATION.—Nothing in this Act shall be construed to infringe upon the right to keep and bear arms as guaranteed by the Second Amendment to the Constitution of the United States. The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition.

(b) CONSTRUCTION IN FAVOR OF RIGHT.—Where this Act may be construed in multiple ways, it shall be construed in favor of preserving the right to keep and bear arms.

(c) CROSS-REFERENCE.—This section is supported by section 3(g) (Preservation of Existing Rights) and shall be read together with that subsection. The cases cited in section 3(g) – Heller, McDonald, Bruen, and Rahimi – provide the controlling doctrinal framework.

SEC. 402. NATIONAL FIREARMS ACT INTERACTION.

(a) NFA-REGULATED ITEMS.—Nothing in this Act modifies the National Firearms Act registration framework under chapter 53 of the Internal Revenue Code of 1986. Items regulated under that Act remain subject to that framework in addition to the Federal Civilian Ownership Certificate at the National Firearms Act tier under section 201(c)(5).

(b) HUGHES AMENDMENT UNAFFECTED.—Nothing in this Act modifies section 922(o) of title 18, United States Code, or affects the existing prohibition on civilian acquisition of machine guns manufactured after

May 19, 1986.

(c) COORDINATION WITH ATF AND TREASURY.—The Attorney General, the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, and the Secretary of the Treasury shall establish coordination protocols such that a National Firearms Act tier Certificate under section 201(c)(5) is administered consistently with existing National Firearms Act registration requirements without imposing duplicative qualification requirements on the certificate holder.

(d) NO MODIFICATION OF EXISTING NFA AUTHORITIES.—Existing authorities of the Bureau of Alcohol, Tobacco, Firearms and Explosives and the Secretary of the Treasury under chapter 53 of the Internal Revenue Code of 1986 are unaffected by this Act, except as expressly modified by section 3(e) (operative fallback architecture).

SEC. 403. FEDERAL COORDINATION – CONSTITUTIONAL DEFENSE.

(a) READY-FOR-ACTIVATION REQUIREMENT.—The Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Secretary of the Treasury, and the Department of Justice Office of Legal Counsel, shall establish and maintain regulations sufficient to operationalize the section 3(e)(1) fallback authority on at most 30 days' notice. Such regulations shall include—

- (1) implementation of National Firearms Act registration procedures for the covered firearm classes described in section 201(b);
- (2) coordination with the Bureau of Alcohol, Tobacco, Firearms and Explosives certification operations to permit transition without program interruption; and
- (3) public-facing guidance for certificate holders on the effect of any judicial decision affecting Title II.

(b) NOTICE REQUIREMENT.—Upon entry of a final judgment or stay affecting any provision of Title II, the Attorney General shall, within 30 days—

- (1) publish notice in the Federal Register stating whether the section 3(e)(1) fallback authority has been activated; and
- (2) provide guidance to certificate holders, applicants, and affected firearm dealers regarding the operational status of the Title II framework and any operative National Firearms Act framework activated under section 3(e)(1).

(c) ANNUAL CONSTITUTIONAL LITIGATION STATUS REPORT.—The Attorney General shall transmit annually to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report containing—

- (1) the status of any constitutional litigation affecting Title II;
- (2) the operational status of the section 3(e)(1) fallback authority, including readiness assessments;
- (3) any judicial proceedings the Attorney General determines may affect Title II in the upcoming fiscal year; and
- (4) any recommendations for further congressional action.

(d) COORDINATION WITH SENATE JUDICIARY.—The Attorney General shall coordinate with the Committee on the Judiciary of the Senate on legislative response to adverse judicial rulings affecting Title II.

TITLE V – IMPLEMENTATION AND OVERSIGHT

SEC. 501. IMPLEMENTATION TIMELINE.

- (a) TRACK A EFFECTIVE DATE.—Title I (Track A – Hunting and Sporting License Framework) shall take effect on the date of enactment of this Act.
- (b) TRACK B OPERATIONAL DATE.—Title II (Track B – Federal Civilian Ownership Certificate) shall be operational not later than [TBD] months after the date of enactment of this Act. The Secretary of Defense, in coordination with the Attorney General, shall publish an implementation plan within 180 days of enactment.
- (c) PHASED GEOGRAPHIC ACCESSIBILITY.—The Secretary of Defense shall publish a phased geographic accessibility plan under section 203(c) within 180 days of enactment, with phased operational milestones at [TBD] months and [TBD] months.
- (d) BUYBACK PROGRAM OPERATIONAL DATE.—The voluntary buyback program under section 302 shall be operational not later than [TBD] months after the date of enactment.
- (e) GRANDFATHERED WEAPON COORDINATION.—Title III (Grandfathered Weapon Transition Framework) shall take effect on the date of enactment.

SEC. 502. INTERAGENCY COORDINATION.

- (a) DEPARTMENT OF DEFENSE LEAD AGENCY.—The Secretary of Defense shall serve as the lead agency for the certification delivery infrastructure under section 203.
- (b) DEPARTMENT OF JUSTICE / ATF LEAD AGENCY.—The Attorney General, acting through the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall serve as the lead agency for the Certificate program standards, certificate administration, and law-enforcement coordination.
- (c) TREASURY COORDINATION.—The Secretary of the Treasury shall coordinate with the Attorney General on—
 - (1) National Firearms Act registration framework integration under section 402;
 - (2) any Federal fee structure established under section 3(d) Taxing Power authority; and
 - (3) the operative fallback authority under section 3(e)(1).
- (d) NATIONAL GUARD BUREAU COORDINATION.—The Chief of the National Guard Bureau shall coordinate with the Secretary of Defense on State Guard cooperative arrangements under section 203, consistent with constitutional limits on Federal direction of State personnel.
- (e) DOJ OFFICE OF LEGAL COUNSEL CONSULTATION.—The Department of Justice Office of Legal Counsel shall consult with the Attorney General on the constitutional posture of regulations issued under this Act, including regulations implementing section 3(e)(1) operative fallback authority.

SEC. 503. ANNUAL REPORTING.

- (a) ANNUAL REPORT.—The Attorney General, in coordination with the Secretary of Defense, shall transmit annually to Congress a report containing—
 - (1) certification volumes by tier and by State;
 - (2) certificate denial rates and grounds for denial;
 - (3) buyback program participation, including weapons surrendered by category and aggregate compensation paid;
 - (4) facility geographic accessibility status and progress against the phased accessibility plan under section 203(c);
 - (5) constitutional litigation status (cross-reference to section 403(c)); and
 - (6) any recommendations for further congressional action.

(b) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Department of Justice not later than 30 days after submission to Congress.

(c) GAO COORDINATION.—The Comptroller General of the United States shall have access to all data and records of the Federal Civilian Ownership Certificate program necessary to perform audits, evaluations, and reports requested by the relevant Committees of Congress.

(d) THREE-YEAR PROGRAM REVIEW.—Not later than three years after the operational date established under section 501(b), and every three years thereafter, the Attorney General shall transmit to Congress a comprehensive program review covering the operation of this Act, including any structural recommendations for amendment.

[All dollar amounts, geographic accessibility distance and time thresholds, appropriation amounts, IRC section cross-references, and additional named-firearm designations marked [TBD] require resolution by licensed legislative counsel, the Department of Justice Office of Legal Counsel, the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Department of Defense Office of General Counsel, the National Guard Bureau, and the Congressional Budget Office before introduction as formal legislation. See Part III counsel notes.]

Part III — Notes for Congressional Counsel

All [TBD] items and constitutional questions below require resolution before introduction. NFSA carries the highest constitutional risk in the bill series alongside BWDS, drawing on Bruen, Rahimi, Maryland Shall Issue v. Moore, the post-Bruen circuit landscape, Peterson NFA-as-shall-issue, and the pending ANJRPC en banc and Kavanaugh AR-15 cert watch. The Sec 3 + Sec 201 fallback ladder entry documents the Architecture C-with-B-fallback posture established in this bill — body-baked safety with operative bill-text severability and prepared NFA-framework fallback authority — paralleling the BWDS Sec 204(f) pattern. DOJ Office of Legal Counsel review is required before introduction.

Item Requiring Resolution	Guidance
Sec 3 + Sec 201 — Constitutional fallback ladder (Architecture C-with-B-fallback) [Sources 200, 202, 221, 222, 229]	Architecture: Architecture C-with-B-fallback variant (the BWDS Sec 204(f) pattern). Sec 3(e) establishes operative bill-text severability with NFA-framework fallback authority — meaningfully stronger than Part III-only documentation. The risk vector is constitutional rather than Byrd Rule (constitutional strikes are stickier than Parliamentary rulings); the fallback architecture has clear operative form (the existing NFA registration framework already analogized to Bruen Footnote 9 in Peterson); the bill anticipates judicial review reaching the question. (1) Primary structure. Sec 201 / 202 / 203 as drafted, anchored by Sec 3(a)-(d) constitutional architecture provisions. Track B is a shall-issue qualification standard with narrow, objective, definite criteria — Bruen Footnote 9 doctrinal home, extended to purchase licensing by MSI v. Moore (4th Cir. en banc 2024). (2) Mid-level fallback if Sec 202 assault-category definition is held invalid. Sec 3(e)(1) operative authority converts assault-category covered transactions to NFA-style registration. This preserves the regulatory framework with the posture changed from FCOC-tier to NFA-registration. AG / ATF / Treasury maintain Sec 3(e)(1) regulations ready for activation per Sec 403(a). Counsel should have NFA-expansion regulations drafted before introduction so Sec 3(e)(1) authority is operationally ready if invoked. (3) Bottom-level fallback. If Sec 3(e)(1) fallback is also held invalid, Sec 3(e)(3) preserves Title I (Track A) and the structural framework of Sec 201 even if specific covered classes lose enforceable certification. Track A unaffected because no Bruen challenge reaches manual-action long guns under existing State licensing. (4) Pre-introduction engagement. DOJ Office of Legal Counsel review required. Senate Judiciary constitutional counsel pre-introduction briefing recommended. The deliberate posture should be named in counsel materials, not concealed — Sec 3(e) operative fallback IS the prepared response, not concealment of risk.

Item Requiring Resolution	Guidance
Bruen (2022) text-and-history standard [Sources 200, 202]	The Bruen majority installed a single-step test that shifts the burden to the government once the Second Amendment's plain text covers an individual's conduct. The government must "affirmatively prove that its firearms regulation is part of the historical tradition that delimits the outer bounds of the right to keep and bear arms." 597 U.S. at 19. The operative analytical concept is the "relevantly similar" historical analog evaluated against two metrics drawn from Heller and McDonald: how the regulation burdens the right and why it does so. Footnote 9 is the doctrinal home of the FCOC. "[N]othing in our analysis should be interpreted to suggest the unconstitutionality of the 43 States' 'shall-issue' licensing regimes," 597 U.S. at 38 n.9, which "often require applicants to undergo a background check or pass a firearms safety course," provided they "contain only narrow, objective, and definite standards" and are not put toward "abusive ends" through "lengthy wait times" or "exorbitant fees." Sec 3(a) and Sec 201(e)-(f) are drafted directly to this language.
Rahimi (2024) "principles" formulation [Source 202]	Rahimi (8-1, Roberts, C.J.; Thomas, J., dissenting) modestly expanded the analogical latitude available to the government. The methodological holding rejects an over-specific reading of Bruen: "the Second Amendment permits more than just those regulations identical to ones that could be found in 1791." Slip op. at 7. The operative inquiry is whether modern regulation "is consistent with the principles that underpin our regulatory tradition" — the law "need not be a 'dead ringer' or a 'historical twin.'" Slip op. at 7-8. Sec 2(a)(4) Findings cite Rahimi's principles formulation, which is more permissive than Bruen's "distinctly similar" language. Justice Barrett's concurrence — analytically the most consequential for legislative drafters — endorsed reading historical principles at a workable level of generality, warning against both "overly specific analogues" producing a "law trapped in amber" and reading principles "at such a high level of generality that it waters down the right."
Maryland Shall Issue v. Moore — controlling Track B precedent [Source 201]	MSI v. Moore, 116 F.4th 211 (4th Cir. 2024) (en banc, 14-2; Keenan, J., for the majority), is the most direct precedent for Track B's FCOC architecture. The en banc majority resolved the case at Bruen step one, holding "non-discretionary 'shall-issue' licensing laws are presumptively constitutional and generally do not 'infringe' the Second Amendment right to keep and bear arms." 116 F.4th at 219. The court treated Bruen Footnote 9 as binding guidance and extended it from carry licensing to purchase licensing — a doctrinal extension central to the FCOC architecture. Cert denied January 13, 2025 (No. 24-373) after ten conference distributions with no published dissent from denial. 145 S. Ct. 1049 (2025). Drafting implication. Track B should track MSI v. Moore's structure: shall-issue, objective criteria only, no subjective suitability review, no discretionary denial, free delivery addressing Footnote 9 exorbitant-fees caution. Sec 201(e)-(f), Sec 203(b), and Sec 3(a) are drafted to that template.

Item Requiring Resolution	Guidance
Post-Bruen circuit landscape — licensing uniformly upheld [Sources 214, 215]	Every Federal circuit to reach the merits has converged on a presumption favoring shall-issue regimes with objective criteria. <i>Antonyuk v. James</i>, 120 F.4th 941 (2d Cir. 2024), upheld New York's CCIA basic structure (cert denied April 7, 2025, No. 24-795); <i>McRorey v. Garland</i>, 99 F.4th 831 (5th Cir. 2024), upheld background-check enhancements and 18-20-year-old purchase delays under Footnote 9; <i>Yukutake v. Lopez</i> (9th Cir. Mar. 14, 2025), upheld basic permit-to-purchase. The <i>Antonyuk</i> vulnerability was the "good moral character" requirement — the FCOC explicitly forecloses any such subjective suitability review (Sec 201(f), Sec 3(a)). Active fault lines include age-based restrictions (<i>Worth v. Jacobson</i>, <i>Lara v. Commissioner</i>, <i>Reese v. ATF</i> — all striking 18-20-year-old prohibitions, deepening split with older 11th Cir. authority) and private-property default rules (<i>Wolford v. Lopez</i>, No. 24-1046, cert granted Oct. 3, 2025, OT 2025 argument heard, decision pending). Neither directly affects the FCOC architecture but counsel should monitor.
Sec 202 assault-category definition — drafting justification [Sources 216-220]	Sec 202 implements the research-recommended tightening in full. The two-feature-plus-detachable-magazine test (Sec 202(a)) avoids the one-feature trigger that has drawn concurrence-level skepticism in the Fourth Circuit. Named-firearm provisions (Sec 202(b)) prevent circumvention via cosmetic feature stripping. The 10-round magazine cap (Sec 202(c)) tracks the capacity limit consistently upheld across all post-Bruen circuits including <i>Hanson v. District of Columbia</i>, 120 F.4th 223 (D.C. Cir. 2024), and <i>Duncan v. Bonta</i>, 133 F.4th 852 (9th Cir. 2025) (en banc, on magazines). The "dangerous AND unusual" findings language (Sec 202(d)) tracks Justice Alito's <i>Caetano</i> concurrence rather than the looser "dangerous OR unusual" language struck in <i>NAGR v. Lamont</i>. Grandfathering (Sec 202(f) + Sec 202(g)) defuses the Penn Central takings argument central to the <i>Duncan</i> cert petition. Most importantly, Sec 202(e) explicitly frames the regime as certification, not prohibition — the Peterson NFA-as-shall-issue model. Pending decision. <i>ANJRPC v. AG NJ</i> (3d Cir. en banc, argued Oct. 15, 2025, decision pending) is the pivotal pending decision. If <i>ANJRPC</i> produces the first circuit-level strike of an assault-weapons ban and creates a clean split, the doctrinal pressure on Sec 202 increases. Sec 3(e)(1) operative fallback to NFA framework is the prepared response — Sec 202 transitions to NFA-tier registration without statutory amendment. The Kavanaugh AR-15 watch in <i>Snope v. Brown</i> ("next Term or two") makes prepared fallback architecture more important, not less.

Item Requiring Resolution	Guidance
U.S. v. Peterson (5th Cir. Aug. 2025) — NFA-as-shall-issue: key new authority [Source 221]	United States v. Peterson, ___ F.4th ___ (5th Cir. Aug. 27, 2025), reissued the Fifth Circuit opinion on the more durable rationale that NFA registration is itself analogous to Bruen Footnote 9 shall-issue licensing — fingerprints plus background check plus denial only when possession would violate law qualify as "narrow, objective, and definite standards." This is the most important post-Bruen reasoning available for the NFSA: a Federal authority has now formally analogized NFA registration to shall-issue licensing, providing precedent for treating FCOC certification the same way. Sec 3(b) anchors this analogy in operative bill text. The Peterson holding is also the doctrinal foundation for the Sec 3(e)(1) operative fallback architecture — if the FCOC is invalidated, the fallback to NFA-style registration tracks the framework Peterson explicitly analogized to Footnote 9. This is not a hypothetical fallback; it is the framework that has operated since 1934 without successful constitutional challenge.
Hughes Amendment / NFA post-Bruen — uniformly intact [Source 218]	U.S. v. Morgan, 150 F.4th 1339 (10th Cir. Sept. 2, 2025), U.S. v. Bridges, 150 F.4th 517 (6th Cir. Aug. 7, 2025), and U.S. v. Kittson (9th Cir. Dec. 10, 2025) all upheld the Hughes Amendment machine-gun ban — no circuit split exists on §922(o). Cert pending in Morgan v. United States, No. 25-6055. Sec 402(b) preserves §922(o) in operative bill text. United States v. Rush, No. 23-3256 (7th Cir. Mar. 10, 2025), upheld §5861(d) as applied to short-barreled rifles, holding United States v. Miller, 307 U.S. 174 (1939), still good law. Forced reset triggers were vacated as machineguns by NAGR v. Garland (N.D. Tex. July 23, 2024) following Garland v. Cargill, 602 U.S. 406 (2024); the Trump-administration DOJ settled in May 2025. NFA framework requirements survive Bruen in all circuits.
Commerce Clause foundation (Sec 3(c)) [Source 222]	Sec 3(c) anchors the Commerce Clause foundation in operative bill text. Three doctrinal moves are critical: (1) acquisition is paradigmatic economic activity satisfying Lopez category three more comfortably than §922(o)'s possession ban; (2) the FCOC is embedded in chapter 44 of title 18, U.S.C., as part of the existing comprehensive scheme — the Raich-style "comprehensive regulatory scheme" rationale; (3) per-element jurisdictional hook in Sec 201(b) ("manufactured, transported, or transferred in or affecting interstate or foreign commerce") preempts as-applied challenges. Gonzales v. Raich, 545 U.S. 1 (2005), as transposed to firearms in U.S. v. Stewart, 451 F.3d 1071 (9th Cir. 2006), upheld §922(o) as applied to homemade machine guns that never crossed State lines. Scarborough v. United States, 431 U.S. 563 (1977), holds that proof a firearm "previously traveled in interstate commerce" satisfies the jurisdictional nexus. Every circuit to consider Commerce Clause challenges to §922(g), §922(o), and the NFA after Bruen has rejected them as foreclosed. Fifth Circuit concurrences (Willett, Ho) in Bonner / Wilson / Hembree urge §922(o) Commerce Clause reconsideration — counsel should pre-answer this fringe position in Findings (Sec 2(a)(8) does so).

Item Requiring Resolution	Guidance
Taxing Power belt-and-suspenders (Sec 3(d)) [Source 229]	If any FCOC fee is included (even nominal), <i>Sonzinsky v. United States</i>, 300 U.S. 506 (1937), provides Taxing Power authority alongside Commerce Clause — on the NFA model. Sec 3(d) anchors this in operative bill text. Drafting recommendation. Counsel should consider a nominal or de minimis fee (waivable for financial hardship) to preserve Taxing Power authority without creating access barriers that Bruen Footnote 9 flags as abusive ends. Free delivery through military and Guard installations under Sec 203(b) directly addresses the Footnote 9 exorbitant-fees caution. The belt-and-suspenders posture means even if Commerce Clause authority is challenged, Taxing Power authority remains operative.
Sec 203 delivery — Printz anti-commandeering mitigation [Source 223]	Sec 203 body framing is intentionally clean ("delivered through military installation programs and State National Guard civilian training programs ... through such cooperative arrangements with the States as may be necessary, consistent with constitutional limits on Federal direction of State personnel"). The operational implementation guidance below avoids <i>Printz v. United States</i>, 521 U.S. 898 (1997), commandeering exposure: (1) Federal Active Component personnel administer the certification operation. Voluntary cooperative agreements with States provide Guard facility access only — State-status Title 32 Guard personnel are not commanded to administer or enforce. (2) Where State Guard personnel participate, they do so as federalized Title 10 personnel under voluntary State-Guard authorization, OR under voluntary State-level cooperative arrangements with their own consent. (3) Federal funding conditions on State Guard cooperation must respect <i>NFIB v. Sebelius</i>, 567 U.S. 519, 580 (2012), anti-coercion limits — funding cannot be so substantial that withdrawal would amount to compulsion. (4) Sec 502(d) National Guard Bureau coordination handles cooperative-arrangement framework operationally. <i>Koons / Siegel v. Platkin</i> (3d Cir. en banc, decision pending) will further clarify surety-law analog doctrine — monitor for decision.
No-registry provision (Sec 205) — FOPA compliance	The FCOC database tracks certificate holders and qualification status only — not specific weapon serial numbers or transactions (Sec 205(a)). FOPA (1986) 18 U.S.C. § 926(a) prohibits a national firearms registry. The FCOC holder database (analogous to driver-license databases) is constitutionally and statutorily distinguishable from a weapons registry. Sec 205(b) and Sec 3(f) state this distinction explicitly in operative bill text. Sec 205(c) prohibits any agency from maintaining a Federal database linking individual certificate holders to specific firearms or transactions, and bars data sharing with other agencies for firearm-by-firearm tracking purposes (except as required for criminal investigation under lawful process). Counsel should review Sec 205 against any existing CMS or ATF data sharing arrangements that could create a §926(a) compliance question.

Item Requiring Resolution	Guidance
Grandfathered transfer restriction (Sec 302(c)) — Penn Central review	The Sec 302(c) prohibition on civilian-to-civilian transfer of grandfathered uncertified weapons may face Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978), Takings analysis. Mitigation: the rule is framed as a qualification requirement for the transferee (must obtain FCOC) rather than a prohibition on transfer by the grandfathered owner. Sec 303 (Certificate Upgrade) and Sec 304 (Family Inheritance) preserve transfer pathways without buyback. The full grandfathering of retention rights under Sec 301 — unconditioned and unlimited in time — is the central Penn Central defense (Sec 301(d) recital). Owners experience no investment-backed-expectation diminution as to existing inventory because retention is unlimited and unconditional. The buyback program (Sec 302) provides a voluntary fair-market-value compensation pathway. Counsel should review Sec 302(b) compensation methodology against takings precedent and ensure the methodology is not confiscatory.
Koons/Siegel v. Platkin — surety-analog doctrine watch [Source 223]	The Third Circuit en banc heard Koons / Siegel v. Platkin on February 11, 2026 — decision pending. The panel had upheld New Jersey's four-reputable-persons referrer requirement by analogy to surety regimes but struck the \$50 victim-fund tax and the liability-insurance mandate as not historically grounded. Operational impact: En banc decision will further clarify how surety laws function as Rahimi principles-level analogs. If favorable, strengthens NFSA Track B historical analog argument. If adverse, review FCOC design to avoid any provision analogous to the struck elements (Sec 203(b) "no cost to participants" already addresses the fee-tax concern; FCOC carries no liability-insurance mandate). Counsel should monitor for decision and any cert petition.

REF_RDNC_Leg14_Bill12_NFSA_2030_5 · REF_ Reference Layer · Reform Democrats of the New Commonwealth · 2026

Legal disclaimer applies — see page 1. This framework requires licensed legislative counsel review before introduction.

Originally conceived and authored by a concerned American citizen. Developed with the assistance of Claude (Anthropic). The ideas belong to anyone willing to fight for them.